



General Assembly

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Resolution adopted by the Human Rights Council on 23 January 2026

S-39/1. The situation of human rights in the Islamic Republic of Iran, especially in the context of the repression of nationwide protests starting on 28 December 2025

The Human Rights Council,

Guided by the purposes and principles of the Charter of the United Nations, the Universal Declaration of Human Rights, the International Covenants on Human Rights and other relevant international human rights instruments,

Recalling all resolutions adopted by the General Assembly and the Human Rights Council on the situation of human rights in the Islamic Republic of Iran, including Assembly resolution 80/222 of 18 December 2025 and Council resolution 58/21 of 3 April 2025,

Reaffirming the primary responsibility of States to respect, protect and fulfil all human rights and fundamental freedoms under international human rights law and to ensure the full enjoyment of all human rights and fundamental freedoms of all persons within their territory and subject to their jurisdiction,

Reaffirming also its strong commitment to international law and to the full respect for the sovereignty, independence, unity and territorial integrity of the Islamic Republic of Iran, and in this context recalling the Declaration on Principles of International Law concerning Friendly Relations and Cooperation among States in accordance with the Charter of the United Nations,

Recalling the obligations of all States under Article 2 of the Charter of the United Nations to refrain in their international relations from the threat or use of force against the territorial integrity or political independence of any State, and to settle their international disputes by peaceful means,

Reiterating serious concern about the human rights situation in the Islamic Republic of Iran, especially in the context of the protests that started on 28 December 2025 in the Grand Bazaar in Tehran with economic grievances and spread across the country, as also expressed by the United Nations High Commissioner for Human Rights and by multiple special procedures of the Human Rights Council,



Expressing deep concern about the unprecedented scale of the violent crackdown on peaceful protests by security forces in the Islamic Republic of Iran, including reports¹ of the extrajudicial killings of protesters, including women and children, and use of excessive and lethal force, leading to the death of thousands of peaceful protesters and a high number of injured protesters,

Expressing deep concern also about the arbitrary arrest and detention of protesters, including children, as well as enforced disappearance and incommunicado detention,

Deeply concerned by the protracted nationwide Internet shutdown and communication blackout imposed by the Government of the Islamic Republic of Iran since 8 January 2026, in violation of international human rights law, and restating its unequivocal condemnation of measures taken to prevent the full documentation of human rights violations and abuses, or to disrupt people's ability to seek, receive or impart information online, as well as other measures that prevent or disrupt access to meaningful connectivity,

Noting with concern the recurrence in recent years of nationwide protest movements that have been met by State-led violence and similar patterns of violations, including the use of excessive and lethal force against protesters by security forces, arbitrary arrests and detentions, as this sustained and systematic impunity has created an enabling environment for perpetrators,

Alarmed at the high numbers of executions in 2025 in the Islamic Republic of Iran, according to reports, including of individuals charged with offences that do not meet the threshold of the most serious crimes, and expressing deep concern at the risks of the use of the death penalty against the protesters recently arrested,

Affirming the inalienable rights of all individuals to life, liberty and security of person, as well as their rights to freedom of peaceful assembly and of association, freedom of opinion and expression, both online and offline, and freedom of religion or belief, and reaffirming that everyone must be able to express their grievances or aspirations in a peaceful manner, including through public protest,

Stressing the need to ensure accountability for human rights violations and end impunity for grave violations of human rights and any international crimes, which is critical for the prevention of further violations, and recalling the obligation of the Islamic Republic of Iran to ensure prompt, effective, independent, transparent and impartial investigations into all alleged human rights violations, in line with international law,

1. *Strongly deplores* the human rights situation in the Islamic Republic of Iran, especially the violent crackdown of peaceful protests resulting in the deaths of thousands of persons, including children, and large numbers of injured individuals, as well as the arbitrary arrest and detention of thousands in connection with the nationwide protests that started on 28 December 2025;

2. *Urges* the Government of the Islamic Republic of Iran to respect, protect and fulfil its human rights obligations and to take all measures necessary to stop and prevent extrajudicial killings, other forms of arbitrary deprivation of life, enforced disappearance, sexual and gender-based violence, arbitrary arrest and detention, incommunicado detention and torture and other cruel, inhuman or degrading treatment or punishment, including against peaceful protesters;

3. *Calls upon* the Government of the Islamic Republic of Iran to cease the targeted intimidation and harassment of victims, survivors and their families and to ensure their access to truth, justice and redress, including reparations, and that perpetrators are held fully accountable, in compliance with fair trial guarantees under international human rights law;

¹ See www.ohchr.org/en/press-releases/2026/01/iran-un-fact-finding-mission-calls-immediate-restoration-internet-access-and.

4. *Affirms* the obligation of the Islamic Republic of Iran to respect, protect and fulfil the rights to freedom of expression, association and assembly of individuals, and to remove structural and legal barriers to freedom of expression, to freedom of peaceful assembly and of association and to the right to participate in political and public life;

5. *Calls upon* the Government of the Islamic Republic of Iran to create a safe and enabling environment for civil society, human rights defenders, journalists and media workers, including by guaranteeing and upholding the right to freedom of opinion and expression, both online and offline, and to end the persistent discrimination against women and girls;

6. *Also calls upon* the Government of the Islamic Republic of Iran to immediately fully restore Internet access for all, and underlines the importance of maintaining nationwide free, open, interoperable, reliable and secure access to the Internet, as contributing to the freedoms of opinion, expression and assembly;

7. *Urges* the Government of the Islamic Republic of Iran to take all legislative, administrative and other measure necessary, in accordance with its international human rights obligations, to ensure that no one is sentenced to death or executed for offences that do not meet the threshold of the most serious crimes or for offences committed before the alleged perpetrator is 18 years of age, and to ensure that all criminal convictions and sentences are handed down by courts that are competent, independent and impartial, following proceedings that strictly respect fair trial guarantees;

8. *Decides* to extend the mandate of the Independent International Fact-Finding Mission on the Islamic Republic of Iran, for a further period of two years, as set out in Human Rights Council resolution 58/21 of 3 April 2025, effective from the end of the sixty-first session of the Council, requests the Fact-Finding Mission to present a report to the Council at its sixty-fourth and sixty-seventh sessions, during an interactive dialogue, and to present an oral update, to be followed by an interactive dialogue, on the implementation of the mandate to the General Assembly at its eighty-first and eighty-second sessions;

9. *Requests* the Fact-Finding Mission to continue to fulfil its mandate in line with the Human Rights Council resolution 58/21 and to conduct an urgent investigation into allegations of recent and ongoing serious human rights violations and abuses and crimes perpetrated in relation to the protests that began on 28 December 2025, including for potential future legal proceedings in line with its mandate, and to present a report on its findings to the Council at its sixty-third session, during an interactive dialogue, and to provide an oral update to the General Assembly, during a joint interactive dialogue with the Special Rapporteur on the situation of human rights in the Islamic Republic of Iran, at the eighty-first session of the Assembly;

10. *Decides* to extend the mandate of Special Rapporteur on the situation of human rights in the Islamic Republic of Iran, for a further period of one year, effective from the end of the sixty-first session of the Human Rights Council, in order to continue to monitor the situation of human rights in the country, including civil, political, economic, social and cultural rights, and to measure progress in the implementation of recommendations, and requests the Special Rapporteur to submit a report to the Council at its sixty-fourth session, during a joint interactive dialogue with the Fact-Finding Mission, and to the General Assembly at its eighty-first session;

11. *Encourages* the Special Rapporteur and the Fact-Finding Mission to cooperate closely, with a view to promoting synergy;

12. *Requests* the Secretary-General and the Office of the United Nations High Commissioner for Human Rights to provide all the resources and expertise necessary to enable the Fact-Finding Mission and the Special Rapporteur to fulfil their mandates, and urges all United Nations bodies to cooperate fully with the Fact-Finding Mission and the Special Rapporteur and to respond promptly to any request made by them, including with regard to access to all relevant information and documentation;

13. *Calls upon* the Government of the Islamic Republic of Iran to cooperate fully with the Fact-Finding Mission and with the Special Rapporteur, to grant them unhindered access to the country without any delay and to provide them with all information necessary to allow for the proper fulfilment of their mandates.

23 January 2026

[Adopted by a recorded vote of 25 to 7, with 14 abstentions. The voting was as follows:

In favour:

Albania, Benin, Bolivia (Plurinational State of), Bulgaria, Chile, Colombia, Cyprus, Czechia, Dominican Republic, Ecuador, Estonia, France, Ghana, Iceland, Italy, Japan, Marshall Islands, Mexico, Netherlands (Kingdom of the), North Macedonia, Republic of Korea, Slovenia, Spain, Switzerland, United Kingdom of Great Britain and Northern Ireland

Against:

China, Cuba, India, Indonesia, Iraq, Pakistan, Viet Nam

Abstaining:

Angola, Brazil, Burundi, Côte d'Ivoire, Democratic Republic of the Congo, Egypt, Ethiopia, Gambia, Kenya, Kuwait, Malawi, Qatar, South Africa, Thailand]
